

POLITY 43 - POLITICAL PARTIES

Democratic functions -> legal identity -> symbols -> finance -> accountability -> reform

STAGE 01

DEMOCRATIC FUNCTION AND PARTY-SYSTEM MAP

1

Party = voluntary association seeking public power through elections.

2

Functions: aggregate interests -> programme -> candidates -> government/opposition -> accountability.

3

Party system counts effective competitors: one-party, two-party, multi-party, dominant and coalition.

4

India = competitive multi-party + federalised State variation; dominance is not monopoly.

5

Answer line: parties convert social plurality into governable and reviewable choices.

STAGE 02

CONSTITUTIONAL AND LEGAL LAYERS

RULE

Constitution: Tenth Schedule; Arts 102(2)/191(2) disqualification bridges.

RULE

Arts 75(1B)/164(1B)/361B: bounded post-defection office bars.

RULE

RPA 1951: Sec 29A registration; 29B-29C contributions; Sec 77 expenditure.

LIMIT

Symbols Order 1968: recognition, reserved/free symbols and Paragraph 15 disputes.

LIMIT

No single comprehensive party law; recognised party is not a constitutional office.

STAGE 03

SECTION 29A REGISTRATION

6

Registration != recognition, reserved symbol, incorporation or approval of every later act.

2

New body: within 30 days of formation; chief executive signs; Secretary ECI receives.

3

Particulars: identity, head office, officers, membership, units, legislators.

4

ECI guideline: newspaper notice of proposed name -> 30-day objection opportunity.

5

Rules must affirm Constitution, socialism, secularism, democracy, sovereignty, unity, integrity.

STAGE 04

ENTRY DECISION AND DEREGISTRATION LIMIT

KEY 1

ECI may seek particulars -> reasonable hearing -> register or refuse -> communicate decision.

KEY 2

Material changes after registration must be notified without delay.

KEY 3

INC (I) v Institute of Social Welfare (2002): Section 29A function quasi-judicial.

KEY 4

No general at-will deregistration; narrow fraud/supervening-unlawfulness situations remain.

KEY 5

Internal-democracy failure alone does not create an unenumerated cancellation power.

STAGE 05

RECOGNITION AND SYMBOLS

1

Recognised party = National or State under performance tests in Symbols Order.

2

National alternatives: 6% in 4+ States + 4 LS members; 2% LS from 3 States; State party in 4.

3

State alternatives: 6%+2 MLAs; 6%+1 MP; 3%/3 seats; 1 MP per 25; or 8% valid votes.

4

Reserved symbol -> recognised-party candidate; free symbol -> other eligible candidates.

5

Status/list date-sensitive; symbol is electoral entitlement, not private property.

STAGE 06

PARAGRAPH 15, SADIQ ALI AND KANHAIYA LAL OMAR

RULE

Rival groups of recognised party -> ECI identity inquiry under Paragraph 15.

RULE

Sadiq Ali: organisational + legislative majority valuable; no mechanical legislature-only rule.

RULE

ECI decides which group is the party for Symbols Order purposes; symbol cannot be divided.

LIMIT

Kanhaiya Lal Omar: Symbols Order valid under Art 324 + Conduct Rules 5 and 10.

LIMIT

Article 324 supplements election law; it does not authorise contradiction of statute.

STAGE 07

SUBHASH DESAI AND ANTI-DEFECTION BOUNDARY

1

Political party != legislature party; political party authorises whip/leader.

2

Speaker applies Tenth Schedule; ECI decides prospective Paragraph 15 symbol identity.

3

Proceedings may coexist; neither institution substitutes for the other.

4

Two-thirds merger defence != Paragraph 15 victory; ECI order does not erase past conduct.

5

Anti-defection is bounded legislative discipline, not a general party-regulation code.

STAGE 08

CONTRIBUTIONS, TAX AND TRUSTS

KEY 1

Sec 29B: voluntary contributions subject to company-law and foreign-source restrictions.

KEY 2

Sec 29C: report each contribution > Rs 20,000 to ECI before tax-return due date.

KEY 3

Non-reporting -> loss of tax relief; threshold is not donation cap or spending ceiling.

KEY 4

Sec 13A: books + donor records + audit + banking/return compliance condition exemption.

KEY 5

Electoral Trusts Scheme 2013: traceable intermediary; >=95% eligible distribution to Sec 29A parties.

STAGE 09

ELECTORAL BONDS AND TRANSPARENCY

1

2017 amendments -> 2018 bearer-bond anonymity architecture.

2

ADR v Union of India, 15 Feb 2024, five judges, 2024 INSC 113.

3

Scheme/non-disclosure changes invalid: voter information under Art 19(1)(a).

4

Unlimited corporate-funding change invalid under Art 14 manifest arbitrariness.

5

SBI data -> ECI publication; judgment did not enact a complete campaign-finance code.

STAGE 10

INTERNAL DEMOCRACY, CANDIDATES AND CAMPAIGNS

RULE

Membership rolls -> organisational elections -> leadership -> ticket distribution.

RULE

Risks: high command, dynasty, opaque finance, weak appeals and candidate centralisation.

RULE

ADR/PUCL affidavits; Rambabu Singh Thakur party publication/reasons; Lily Thomas conviction boundary.

LIMIT

Sec 77: candidate account; notified leaders 40/20; travel exclusion is bounded.

LIMIT

Paid news, MCC and manifestos operate through different rules; all promises are not corrupt practices.

STAGE 11

OPPOSITION, FEDERALISM, DIGITAL AND RTI

1

Opposition: scrutiny + alternative policy + committees + electoral alternation.

2

Discipline enables government; overbroad whips can compress deliberation.

3

National centralisation/regional autonomy = tendency shaped by territory and office, not law.

4

Digital reform: sponsor/ad library/expenditure trail/deepfake response + due process.

5

CIC 2013 RTI order exists, but contested implementation forbids a settled universal claim.

STAGE 12

EXAM FILTER AND REFORM VERDICT

KEY 1

Prelims: Constitution vs RPA vs Symbols Order vs case proposition.

KEY 2

Mains: function -> legal frame -> selected deficit -> evidence -> counter -> reform -> verdict.

KEY 3

Reforms: minimum internal procedure, open finance, graded sanctions, independent appeal.

KEY 4

No volatile lists/data; no invented PYQ/key; proposals remain proposals.

KEY 5

Verdict: regulate parties' public consequences proportionately while protecting political pluralism.

ANSWER SPINE

function -> exact legal source -> named evidence -> mechanism -> qualification -> proportionate reform

VERDICT: regulate public consequences and transparency without extinguishing association, pluralism or dissent.